

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX**

-----X  
**DANIEL THOMAS,**

Plaintiff

- against -

**THE CITY OF NEW YORK and  
POLICE OFFICER KELVIN WHITE (shield # 02063),**

Defendants.  
-----X

**Index No.**

Purchased 8-8-19

Plaintiff designates Bronx  
County as the place of trial

The basis of the venue is  
where the tort arose

**SUMMONS**

**TO THE ABOVE-NAMED DEFENDANTS:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY  
August 8, 2019

  
-----  
**THE LAW OFFICES OF ELLIOT S. KAY**  
Attorney for Plaintiff  
888 Grand Concourse, Suite 1H  
Bronx, NY 10451  
(212) 939-7251

Defendant's Address:  
**CORPORATION COUNSEL OF THE  
CITY OF NEW YORK**  
100 Church Street  
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK  
BRONX COUNTY****DANIEL THOMAS****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK and  
POLICE OFFICER KELVIN WHITE (shield # 02063),****Defendants.**

Plaintiff DANIEL THOMAS, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

**PARTIES**

1. At all times hereinafter mentioned, Plaintiff DANIEL THOMAS was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant POLICE OFFICER KELVIN WHITE (shield # 02063)("P.O. WHITE"), was and is a police officer employed by defendant CITY.

### BACKGROUND

5. On May 15, 2018, at approximately 11:45 a.m., inside of 557 Melrose Place in Bronx County, without just cause or provocation, the Defendants, including P.O. WHITE, violently handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Resisting Arrest and related charges. Plaintiff was taken to a police precinct where he was searched and forced to remain in a precinct holding cell. Next, Plaintiff was taken to Bronx County Central Booking.
6. On or about May 17, 2018, Plaintiff was released from police custody.
7. Plaintiff had to defend against false charges until the matter was dismissed on February 7, 2019.

### PROCEDURAL POSTURE

8. On May 21, 2019, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable. On June 6, 2019, the Court granted Plaintiff's application to file a late Notice of Claim.
9. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.
10. A 50-H hearing has been held.
11. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.

12. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

13. Paragraphs 1-12 are incorporated by reference as fully set forth herein.

14. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 5-6, and Plaintiff did not consent to that arrest or confinement.

15. The Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

16. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: BATTERY

17. Paragraphs 1-16 are incorporated by reference as though fully set forth herein.

18. When P.O. WHITE violently grabbed Plaintiff and arrested Plaintiff, he subjected Plaintiff to a harmful or offensive bodily contact. P.O. WHITE intended to make that contact without the consent of Plaintiff.

19. As a result of being battered by P.O. KELVIN WHITE, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: ASSAULT

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.

21. P.O. WHITE, acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact when he

approached Plaintiff and violently handcuffed Plaintiff.

22. As a result of being assaulted by P.O. WHITE, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

**WHEREFORE**, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY  
August 8, 2019

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY

  
**BY: ELLIOT S. KAY, ESQ.**

Attorney for Plaintiff  
888 Grand Concourse, Suite 1H  
Bronx, NY 10451  
(212) 939-7251

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX**

-----X  
**DANIEL THOMAS,**

Index No.

Plaintiff

Purchased: 8-8-19

-against-

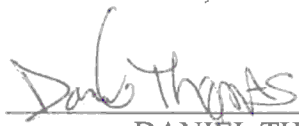
**THE CITY OF NEW YORK and  
POLICE OFFICER KELVIN WHITE (shield # 02063),**

Defendants  
-----X

**INDIVIDUAL VERIFICATION**

STATE OF NEW YORK)  
COUNTY OF BRONX) ss:

DANIEL THOMAS, being duly sworn deposes and says that the deponent is the Plaintiff in the within action; that deponent has read the foregoing Summons and Complaint and knows the contents thereof; that the same are true to deponents own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.

  
\_\_\_\_\_  
DANIEL THOMAS

Sworn to before me on this

8<sup>th</sup> day of August, 2019

  
**ELLIOT S. KAY**  
Notary Public, State of New York  
No. 02KA6234193  
Qualified in Westchester County  
Commission Expires January 18, 2023

Dated: Bronx, NY  
August 8, 2019